



POLICE DEPARTMENT

March 19, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202409497 (Incident Date: September 21, 2024) regarding Police Officer Larry Feng, Tax No. 965087 (PODS Case No. C-036621)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Larry Feng and has determined that the proposed penalty of a Schedule "B" Command Discipline is not warranted.

In this matter, Police Officer Feng stated that, days before the incident, he attended a community board meeting at which the local community had complained about the residence in question. The community complained that the residence was functioning as an "illegal establishment" where the owner hosted parties. The premises did not have a permit or a liquor license. According to Officer Feng, there had been several hundred 311 noise complaints for this location over the past few years. On the day of the incident, they went to check on the premises, and officers observed an individual outside the premises, within a gated fence, in possession of what appeared to be a firearm in his pants pocket. Upon seeing the police shine a flashlight in his direction, the individual immediately fled inside the residence, and the respondent followed behind him and subsequently recovered a firearm from the individual. The individual was arrested and charged with Criminal Possession of a Weapon. CCRB substantiated an allegation of improper entry against the respondent.

In this matter, the Police Commissioner has reviewed the facts and circumstances and determined that Police Officer Feng lawfully entered the residence due to exigent circumstances immediately after the individual fled from police with what appeared to be a firearm, then placed him under arrest for the same.

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The Police Commissioner has determined that the respondent's entry into the house did not constitute misconduct. Therefore, having considered the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Feng for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office